

		Defendant Seacoast Capital Partners IV L.P. (“Seacoast”) is alleged to be a private equity investor who manages and controls the financial decisions of DI Overnite. (SAC ¶ 39.) The SAC alleges Defendant TForce Logistics West, LLC (“TForce”) contracted with the Americal Red Cross to provide courier services, subcontracted with DI Overnite for those services, and subsequently subcontracted with Puma for the services. (SAC ¶ 33.) TForce was obligated by its contract with the American Red Cross to ensure DI Overnite was capitalized, could meet its financial obligations, and was a reputable company. (<i>Id.</i> at ¶ 37.) Plaintiff alleges TForce failed to conduct the required due diligence and, as a result, continued to pay DI Overnite, which absconded with or diverted the funds. (<i>Id.</i>) Plaintiff shall be permitted to seek documents indicating the money transferred between Kaufman, Varraveto, and the identified entities, DI Overnite, Seacoast Partners, and TForce. Such documents could reasonably shed light on the nature of the entities at issue, their connection to the alleged misconduct, and the fate of Plaintiff’s funds. Plaintiff’s specific need for the discovery outweighs Kaufman’s generalized interests in financial privacy, particularly in light of Plaintiff’s agreement to an appropriate protective order. “Protective measures, safeguards, and other alternatives may minimize the privacy intrusion. ‘For example, if intrusion is limited and confidential information is carefully shielded from disclosure except to those who have a legitimate need to know, privacy concerns are assuaged.’ ” (<i>Pioneer Electronics (USA), Inc. v. Superior Court</i> (2007) 40 Cal.4th 360, 371.) To the extent Defendant Kaufman requests sanctions, sanctions are denied because the notice of motion did not comply with Civil Procedure Code § 2023.040. Thus, sanctions are unauthorized. Plaintiff to give notice.
51	County Records Research, Inc. vs. Nguyen 24-01447153	Motion for Leave to File Cross Complaint Defendant Albert Nguyen’s unopposed motion for leave to file a Cross-Complaint is GRANTED. A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). (Code Civ. Proc. § 428.50, subd. (c).) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (<i>Id.</i>) There is a liberal policy regarding the filing of cross-complaints. Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: “A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).)

		Defendant Albert Nguyen’s proposed Cross-Complaint asserts one cause of action for approval of claim and disbursement of the entirety of the interpleaded funds to Cross-Complainant Albert Nguyen. (A. Nguyen Decl. ¶ 33, Exh. 13 [Proposed Cross-Complaint].) The proposed Cross-Complaint’s claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in the Complaint (ROA 2) and are permissive. (<i>Banerian v. O’Malley</i> (1974) 42 Cal.App.3d 604, 612 [“Except as between plaintiffs and defendants, there is no compulsory cross-complaint in California procedure.”].) Defendant Albert Nguyen has not unreasonably delayed in seeking leave to file its proposed cross-complaint and no prejudice to any party has been identified. Defendant Albert Nguyen shall give notice and file and serve the Cross-Complaint attached as Exhibit 13 to the Declaration of Albert Nguyen by July 24, 2026.
53	Abas vs. Rivian Automotive, LLC 26-01551242	Motion to Compel Arbitration Defendant Rivian Automotive LLC’s unopposed motion to compel arbitration and to stay the action is GRANTED. The Court takes judicial notice of the Complaint filed by Plaintiff Peter Abas in this action, as requested by Defendant. (Evid. Code, § 452, subd. (d).) Defendant contends Plaintiff’s claims are subject to arbitration pursuant to a “Rivian Purchase Agreement.” Plaintiff has not filed an opposition. Legal standard The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (<i>Rosenthal</i>)). “[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence” and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendant seeks to compel arbitration under the FAA. The Rivian Purchase Agreement provides that the arbitration agreement is entered into pursuant to the FAA. (Ameripour Decl., Ex. 1, p. 7.)